

8.	Jacome v. Barnett	On calendar is the motion by defendant Case C. Barnett (Defendant) to stay this action pending resolution of the relate case entitled <i>Jacklyn Marie Jacome, etc. v. Kevin Ullrich, et al.</i>, Orange County Superior Court Case No. 30-2022-01259355. The motion contends a stay of this legal malpractice matter is in the interest of justice because the issues of liability, causation, and damages in this case will be impacted by the resolution of the related case. Plaintiff Jacklyn Marie Jacome, a dependent adult, by and through her guardian ad litem, Mary Jane Ramirez, filed a notice stating she does not oppose the motion to stay this action pending resolution of the related case. Based on the foregoing and the governing law, the court finds a stay is appropriate and therefore GRANTS the motion. (See <i>Beal Bank, SSB v. Arter & Hadden, LLP</i> (2007) 42 Cal.4th 503, 513-514; <i>Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal.4th 739, 758; <i>Adams v. Paul</i> (1995) 11 Cal.4th 583, 592-593; <i>Sindell v. Gibson, Dunn & Crutcher</i> (1997) 54 Cal.App.4th 1457, 1473, n. 11; <i>Rosenthal v. Wilner</i> (1988) 197 Cal.App.3d 1327, 1331.) The court hereby stays this action pending resolution of the related case, which is currently set for trial on October 23, 2023. The court sets a status conference in this case for December 8, 2023, at 9:30 a.m., in Department C23. Defendant's counsel is ordered to give notice.
9.	Le v. Nguyen	Before the court are the following motions filed by defendant Lieu Thi Nguyen (Defendant) directed to plaintiff Warren Le (Plaintiff): (1) motion to compel deposition and request for monetary sanctions; (2) motion to compel responses to request for production of documents, set one, and request for monetary sanctions; and (3) motion to compel responses to form interrogatories, set one, and request for monetary sanctions. As more fully set forth below, the motions are DENIED WITHOUT PREJUDICE. <u>Motion No. 1: Compel Deposition</u> "The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action or an officer,

director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (Code Civ. Proc., § 2025.280(a).)

Here, Defendant contends Plaintiff has refused to appear for his deposition. Defendant allegedly served a deposition notice on Plaintiff’s counsel by email on January 19, 2023. The motion, however, does not include a copy of the deposition notice or any proof of service showing the notice of deposition was served on Plaintiff’s counsel. The statements in counsel’s declaration and the email from counsel’s legal secretary to Plaintiff’s counsel purporting to attach the deposition notice are not a proper or adequate proof of service. (See Code Civ. Proc., § 1013b.) Thus, the court is unable to determine if the deposition notice was properly served such that the notice would be effective to require Plaintiff to attend the deposition.

In addition, there is no indication in the moving papers that Defendant’s counsel contacted Plaintiff after the deposition to inquire about the nonappearance as required by Code of Civil Procedure section 2025.450(b)(2).

Based on the foregoing, the motion is **DENIED WITHOUT PREJUDICE.**

**Motion Nos. 2 and 3: Compel Answers to
Request for Production and Form
Interrogatories**

A propounding party may seek a court order compelling answers if the party to whom the interrogatories or requests for production are directed fails to respond. (Code Civ. Proc., §§ 2030.290(b) [interrogatories]; 2031.300(b) [request for production].)

Here, Defendant contends Form Interrogatories, Set One, and Requests for Production of Documents, Set One, were propounded on Plaintiff via email on January 19, 2023, and to date, no responses have been received. The motions, however, fail to include copies of the subject discovery requests or proofs of service showing the requests were served on Plaintiff. As with the motion to compel deposition, the statements in counsel’s declaration

		and the email from counsel's legal secretary to Plaintiff's counsel purporting to attach the discovery requests are not a proper or adequate proof of service. (See Code Civ. Proc., § 1013b.) Thus, the court is unable to determine if the discovery requests were properly served. Based on the foregoing, the motions are DENIED WITHOUT PREJUDICE. Counsel for Defendant is to give notice.
10.	Hernandez v. Xiem Tools, USA, LLC	OFF CALENDAR – notice withdrawing motions filed by moving party
11.	MOM CA Investco LLC v. Honarkar	On calendar are the following two motions: (1) motion by defendant Mohammad Honarkar (Honarkar) to compel arbitration of the claims, other than for injunctive relief, alleged in the First Amended Complaint (FAC) of plaintiffs MOM CA Investco LLC, MOM AS Investco LLC, MOM BS Investco LLC, MOM CA Investor Group LLC, MOM AS Investor Group LLC, and MOM BS Investor Group LLC (collectively, MOM Entities), and Michael Kluchin (Kluchin) [Kluchin and MOM Entities shall be collectively referred to as Plaintiffs) and to stay the court proceedings, and (2) motion of plaintiffs MOM CA Investco LLC and MOM CA Investor Group LLC to quash the business records subpoena Honarkar served on third party Nano Banc. <u>Motion No. 1: Compel Arbitration and Stay Court Proceedings</u> As more fully explained below, the motion is GRANTED. A petition to compel arbitration must allege both (1) a "written agreement to arbitrate" the controversy, and (2) that a party to that agreement "refuses to arbitrate" the controversy. (Code Civ. Proc., § 1281.2.) The court shall grant the petition unless the petitioner waived the right to compel arbitration, or other grounds exist for rescission of the agreement. (<i>Ibid.</i>) "Normally, the court decides the scope and validity of an arbitration agreement, including whether it is unconscionable. [Citation.] When the parties 'clearly and unmistakably' delegate issues of arbitrability to the arbitrator, [however,] the arbitrator, not the court, decides such issues as the

scope of the arbitration agreement.” (*Chin v. Advanced Fresh Concepts Franchise Corp.* (2011) 194 Cal.App.4th 704, 709; *Rodriguez v. Am. Techs., Inc.* (2006) 136 Cal. App. 4th 1110, 1123 [“Although the scope of an arbitration clause is generally a question for judicial determination, the parties may, by clear and unmistakable agreement, elect to have the arbitrator, rather than the court, decide which grievances are arbitrable”].)

California courts of appeal have held a court may decline to enforce an agreement delegating questions of arbitrability to an arbitrator if it concludes the claim of arbitrability is “wholly groundless.” (See *Dream Theater, Inc. v. Dream Theater* (2004) 124 Cal.App.4th 547, 553 [“unless a claim of arbitrability is wholly groundless, the court should stay proceedings pending the arbitrator’s determination of his or her own jurisdiction”]; *Smythe v. Uber Technologies, Inc.* (2018) 24 Cal.App.5th 327, 332-333.) The U.S. Supreme Court abrogated the legal principle underlying these decisions by holding, when a court is required by a valid delegation clause to refer disputes about arbitrability to an arbitrator, it has no power to decide such issues even if it believes the motion for arbitration is “wholly groundless.” (*Henry Schein, Inc. v. Archer & White Sales, Inc.* (2019) 139 S.Ct. 524, 528.) Based on this authority, it is unclear whether California courts will continue to apply the “wholly groundless” exception to an otherwise valid delegation clause.

Here, the agreement to arbitrate is found in the three Operating Agreements attached to Honarkar’s declaration. The agreements have the same arbitration provision and include a delegation clause. Specifically, the agreements state, “Any dispute, controversy or claim arising out of or relating to this Agreement (other than claims for injunctive or equitable relief), including, but not limited to, the interpretation, breach or termination thereof (**including whether the claims asserted are arbitrable**), shall be referred to and finally determined by arbitration in accordance with the expedited arbitration rules of Judicial Arbitration and Mediation Services, Inc. (“JAMS”) or such other rules as the parties may agree upon.” (Honarkar Dec., Exhs. A, B, C at ¶ 19.10., emphasis added;

	see also Asset Contribution Agreement, Honarkar Dec., Exh. D at ¶ 6(g)(ii).) In opposition to the motion, Plaintiffs argue arbitration should be denied because (1) Kluchin’s assault and battery claims are not subject to arbitration because he is not a party to the Operating Agreements and his claims do not relate to or arise from the Operating Agreements; (2) Honarkar waived any right to compel arbitration by availing himself of the benefit of discovery in the judicial forum; and (3) the claims in the related case should be consolidated with the claims in this case and tried in court. There also is a dispute as to whether Plaintiffs’ declaratory relief claim should be ordered to arbitration. (The parties agree the injunctive relief claims should not be sent to arbitration under the terms of the arbitration agreement.) The issue Plaintiffs fail to address, however, is who should decide these issues challenging the enforceability and scope of the arbitration provision. Indeed, the motion specifically raises the delegation provision and argues it is for the arbitrator to decide the enforceability of the arbitration agreement and its scope. Plaintiffs do not dispute the existence of the delegation clause or its applicability to the challenges Plaintiffs raise. Likewise, Plaintiff do not raise the “wholly groundless” exception to delegation to the extent that exception remains viable. As more fully explained below, the court concludes the delegation clause requires all issues Plaintiffs raise in opposition to the motion to compel arbitration to be submitted to the arbitrator for final determination. Kluchin argues his claims for assault and battery are “completely unrelated to the Operating Agreements” and therefore cannot be ordered to arbitration because he was not a signatory to the Operating Agreements and his position as an employee of Continuum Analytics, Inc. does not make him subject to the arbitration provision. The two causes of action alleged by Kluchin arise out of the incident that took place on May 2, 2023, at Hotel Laguna and Laguna Holiday Inn. Kluchin alleges Honarkar threatened him as he was attempting to enter the property and then made harmful contact with him to remove him from the
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	property. (FAC at ¶¶84 and 88.) Kluchin asserts he was rightfully on the premises because the MOM Entities had rightful possession. (FAC at ¶40.) Honarkar disputes this claim and contends resolution of the right to possession issues, and Honarkar's right to eject Kluchin, likely will involve resolution of the ownership/management issues that are the subject of dispute between the MOM Entities and Honarkar. Honarkar also argues Kluchin was acting as the MOM Entities agent and within the scope of that agency. Whether Kluchin's claims are covered by the arbitration agreement is an issue for the arbitrator to decide pursuant to the delegation provision. Indeed, delegation provisions delegate to the arbitrator all issues regarding the scope of the arbitration, including who is subject to arbitration. To the extent the "wholly groundless" exception remains viable, there exists a colorable, good faith argument Kluchin's role with the MOM Entities subjects the claims he alleges to arbitration. The court does not express any opinion regarding that ultimate issue, but rather, simply concludes that issue should be decided by the arbitrator pursuant to the delegation provision. Moreover, assuming arguendo Kluchin's claims are not subject to the delegation provision, the court nonetheless determines it would be appropriate to stay his claims pending the outcome of the arbitration between Honarkar and the MOM Entities because there is a possibility of conflicting rulings on a common issue of law or fact. Code of Civil Procedure section 1281.2(d) provides in pertinent part as follows: "If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c) herein, the court . . . (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding." Plaintiffs argue the arbitration agreement should not be enforced because Honarkar waived his right to arbitration. This is another issue that must be submitted to the arbitrator pursuant to the
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		delegation provision and Plaintiffs failed to provide any argument to the contrary. Nonetheless, assuming arguendo the waiver issue should be decided by the court, the court finds there has been no waiver. The leading case on whether the right to arbitrate has been waived is <i>Saint Agnes Medical Center. v. PacifiCare of California</i> (2003) 31 Cal.4th 1187 (<i>Saint Agnes</i>). “The law favors arbitration, and waiver will not be ‘lightly inferred.’ The party claiming the other waived the right to arbitrate ‘bears a heavy burden of proof.’” (<i>Saint Agnes, supra</i>, 31 Cal.4th at p. 1195.) While there is no single test for establishing waiver, the relevant factors include: (1) “whether the party's actions are inconsistent with the right to arbitrate”; (2) “whether the litigation machinery has been substantially invoked and the parties were well into preparation of a lawsuit before the party notified the opposing party of an intent to arbitrate”; (3) “whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay”; (4) “whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings”; (5) “whether important intervening steps (e.g., taking advantage of judicial discovery procedures not available in arbitration) had taken place”; and (6) “whether the delay affected, misled, or prejudiced the opposing party.” (<i>Saint Agnes, supra</i>, 31 Cal.4th at p. 1196.) “No one of these factors predominates and each case must be examined in context.’ . . . The question of prejudice, however, ‘is critical in waiver determinations.’” (<i>Quach v. California Commerce Club, Inc.</i> (2022) 78 Cal.App.5th 470, 477–478.) There has been little to no delay in this action other than that arising from the impacted nature of the court’s calendar. Honarkar filed this motion six weeks after the Plaintiff filed the complaint. The only reason Honarkar delayed that long is that Honarkar opened an arbitration proceeding before Plaintiff even filed this case and Plaintiff’s were cooperating and proceeding with the arbitration up until May 30, 2023. Once Plaintiffs changed their mind and communicated they no longer were willing to participate in arbitration Honarkar filed this
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		motion within 2 weeks. As such, the court does not find any delay on Honarkar's part. Similarly, this motion is not made close to the trial date in that it was filed shortly after the case was commenced and no trial date has been set. Plaintiffs' primary argument is Honarkar invoked the litigation machinery by engaging in discovery such that he has waived his right to arbitrate. (Opp. at 13:21.) Based on a review of the history of this litigation, however, the court finds the discovery was related to the injunctive relief claims. The MOM entities attach written discovery served by Honarkar on May 8, 2023, which they assert constitutes 450 discovery requests. The discovery is form interrogatories and requests for production to Kluchin and form interrogatories, requests for admissions, and document requests to two of the MOM Entities, for a total of eight sets of discovery. It is not surprising Honarkar propounded discovery because one of the central issues in this case has been the right of the parties to injunctive relief. The MOM entities have twice filed motions for preliminary injunction and Honarkar has filed his own motion for a preliminary injunction. (And, of course, there were multiple ex parte hearings on requests for temporary restraining orders.) One of the issues central to obtaining a preliminary injunction is establishing a likelihood of success on the merits. (<i>Smith v. Adventist Health Sys./W.</i> (2010) 182 Cal.App.4th 729, 749.) In the extensive briefs Honarkar submitted on the injunctive relief issues there has been the repeated argument the MOM Entities cannot establish a likelihood of success on the merits. For example, Honarkar has argued the MOM Entities cannot sue to enforce the contracts because they did not perform their obligations under the contracts. As an additional example, Honarkar repeatedly has argued the MOM Entities are liable for fraud in the inducement. Further, Honarkar's discovery was in response to the MOM Entities' actions. For example, the MOM Entities sought injunctive relief immediately upon filing the complaint and then sought a second order further enjoining Honarkar. To respond to these claims, it would be natural to expect Honarkar to
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	conduct discovery. This discovery would not only include written discovery to the parties but would also include the subpoena to Nano Bank which Honarkar issued. This discovery naturally overlaps with other causes of action. Plaintiffs also point to Honarkar taking Kluchin's deposition. This too is not surprising because in the FAC the Plaintiffs state Kluchin was an agent for the MOM Entities (FAC at ¶20), he submitted declarations in support of the requests for injunctive relief, and he appears to have had knowledge of facts regarding the "likelihood of success on the merits" issue. Plaintiffs further argue Honarkar filing eight motions to quash constitutes invoking the litigation machinery. The subpoenas Honarkar seeks to quash, however, are allegedly seeking improper information in which Honarkar has an interest. The fact Honarkar has a pending motion to compel arbitration does not mean that he cannot take necessary actions to prevent improper disclosure of information. Finally, Plaintiffs fail to acknowledge the arbitration agreement between the parties specifically allows discovery: "Discovery in accordance with California law shall be permitted." The only prejudice Plaintiffs assert as justification for finding a waiver is the money expended conducting discovery. Given the substantial property and assets involved in this litigation, and the numerous motions filed related to attempts to obtain injunctive relief, the amount of money spent on the discovery appears quite small. Nonetheless, as the discovery was related to injunctive relief issues raised by plaintiffs, and it was authorized by the arbitration agreement, there is no prejudice to Plaintiffs in having to respond to discovery relating thereto. Accordingly, the court concludes, based on the <i>Saint Agnes</i> factors, and applicable case law, as well as the parties' briefs, Honarkar has not acted inconsistently with its right to compel arbitration and there has been no prejudice to Plaintiffs. No waiver occurred.
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		As for Plaintiffs’ suggestion the court should consolidate all claims in this case with the claims asserted in the related case. That request may not properly be asserted in an opposition brief, and Plaintiffs fail to cite any authority supporting the denial of this motion based on that request. Finally, as to the parties’ dispute regarding whether Plaintiffs’ declaratory relief claim should be submitted to arbitration, that is another question that is clearly for the arbitrator to decide pursuant to the delegation provision. Based on the foregoing, the motion is GRANTED and the parties are ordered to submit all claims (except for the injunctive relief claims) to arbitration for the arbitrator to determine which issues must be decided by arbitration, and then for the arbitrator to decide those issues. The case is hereby STAYED pending resolution of the arbitration (and that stay extends to Kluchin’s claims to the extent they are not subject to arbitration as stated above). <u>Motion No. 2: Quash Subpoena</u> Based on the above ruling, the hearings on the motion to quash the Nano Bank subpoena, as well as the eight motions to quash filed by Defendant, are vacated and the parties are directed to schedule the hearing with the Arbitrator pursuant to the Arbitrator’s rules and procedures. Honarkar’s counsel is ordered to give notice of this ruling.
12.	D.G. v. Doe 1	The motion for summary judgment, or in the alternative summary adjudication, filed by defendants Orange County Social Services Agency and County of Orange (collectively, Defendants) is GRANTED. Initially, the court notes no one disputes plaintiff D.G. (Plaintiff) was the victim of repeated terrible wrongs at the hands of his foster (and later adoptive) parent, or that he has suffered greatly as a result of those wrongs. That, however, is not the issue before this court. Rather, the question this court faces is whether the law and the facts, as presented, support potentially imposing liability on Defendants for the injuries Plaintiff has suffered for much of his life—or more accurately whether there

	is a triable issue as to whether to impose such liability. (See <i>Margaret W. v. Kelley R.</i> (2006) 139 Cal.App.4th 141, 145 (<i>Margaret W.</i>)). As explained below, the court agrees with the challenges Defendants assert to Plaintiff's claim. Plaintiff's operative First Amended Complaint (FAC) alleges a single cause of action for negligence. As both Defendants are public entities, liability for negligence must be authorized by statute. (<i>Branch v. State of Cal. ex. rel. Department of Transportation</i> (1984) 159 Cal.App.3d 340, 343; Gov. Code § 815.) Plaintiff's FAC alleges three statutory bases for Defendants' liability—Government Code sections 815.2, 815.4, and 815.6—i.e., vicarious liability for the acts or omissions of their employee or independent contractor under sections 815.2 and 815.4, and liability for a mandatory duty imposed by an enactment designed to protect against the risk of this particular kind of injury under section 815.6. As to liability for negligence under Government Code section 815.6, Plaintiff fails to point to any enactment that applies in this case. None of the enactments cited in the FAC existed at the time of the alleged conduct, and the opposition does not argue this point at all. As such, no liability can be found against Defendants under Government Code section 815.6. The court GRANTS Defendants' request for judicial notice regarding the enactments Plaintiff alleges in the FAC. The opposition makes clear Plaintiff's claim against Defendants is based on the acts and omissions of its social workers, narrowing down the argument as to vicarious liability for Defendants' employees or independent contractors. Plaintiff disclaims any effort to hold Defendants liable for the actions of his foster parents. (Opp. at p. 9, fn. 1.) To prevail in a negligence action, a plaintiff must show the defendant owed a legal duty to the plaintiff, the defendant breached that duty, and the breach proximately caused injury to the plaintiff. (<i>Wiener v. Southcoast Childcare Centers, Inc.</i> (2004) 32 Cal.4th 1138, 1145.) A defendant does not owe a legal duty to protect against third party criminal conduct unless a special relationship exists between the defendant and the plaintiff. (<i>Delgado</i>
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	<i>v. Trax Bar & Grill</i> (2005) 36 Cal.4th 224, 235; <i>Margaret W.</i>, <i>supra</i>, 139 Cal.App.4th at p. 152.) There is no dispute a special relationship existed between Plaintiff and Defendants because Plaintiff was in foster care with Defendants being responsible for him and his placement. "[E]ven when a defendant has formed a special relationship with a plaintiff, courts uniformly hold that the defendant has no duty to protect the plaintiff from unforeseeable third-party criminal conduct." (<i>J.L. v. Children's Institute, Inc.</i> (2009) 177 Cal.App.4th 388, 396 (<i>J.L.</i>); see <i>Margaret W.</i>, <i>supra</i>, 139 Cal.App.4th at p. 152.) Indeed, "despite that special relationship, the existence of a duty still requires that the harm be reasonably foreseeable, which requires that the defendant have actual knowledge of the assaultive propensities of the assailant. [Citation.] Defendants cannot be liable under a negligent supervision theory for nonfeasance based solely on constructive knowledge or information they should have known." (<i>Margaret W.</i>, at p. 153.) "What is apparent from all these cases analyzing defendants' liability for the criminal conduct of a third party is that foreseeability is the crucial factor [citation] and that—no matter whether a heightened or lesser degree of foreseeability was required and no matter whether the actual crime committed or only similar conduct needed to be foreseen—foreseeability must be measured by what the defendant actually knew. None of these cases has held that a defendant owed a duty to take steps to prevent or respond to third party crime on the basis of constructive knowledge or information the defendant should have known. We are not aware of any case involving liability for third party criminal conduct that has held that a special relationship creates a duty to investigate or that has charged a defendant with making forecasts based on the information such an investigation might have revealed." (<i>Margaret W.</i>, <i>supra</i>, 139 Cal.App.4th at p. 156.) Based on <i>Doe v. United States Youth Soccer Association</i> (2017) 8 Cal.App.5th 1118 (<i>Youth Soccer</i>), Plaintiff argues actual knowledge was not required to impose a duty, but the court finds <i>Youth Soccer</i> to be distinguishable and not controlling for
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	multiple reasons. First, <i>Youth Soccer</i> involved an appeal from a ruling sustaining a demurrer and the only duty it found was the duty to conduct background checks. (<i>Youth Soccer, supra</i>, 8 Cal.App.5th at pp. 1138-1139.) Here, the court is faced with a summary judgment/adjudication motion, and the evidence showed background and criminal checks were performed on Plaintiff's foster parents as they went through the licensing process to become foster parents. Next, the <i>Youth Soccer</i> court found a duty despite the lack of actual knowledge because the defendants were aware of incidents of physical and sexual abuse by coaches, and that their programs attracted pedophiles. The defendants had collected statistics regarding the prevalence of such conduct and developed the KidSafe Program acknowledging the risks. Moreover, the local defendants were aware on specific incidents by another individual in their organization the year before the perpetrator became involved. (<i>Youth Soccer, supra</i>, 8 Cal.App.5th at pp. 1132-1133.) There is no such evidence in this case. Indeed, no evidence was presented to show Defendants had any awareness even remotely similar to the awareness on which the <i>Youth Soccer</i> court relied in imposing a duty to perform background checks. The <i>Youth Soccer</i> court distinguished <i>Chaney v. Superior Court</i> (1995) 39 Cal.App.4th 152 (<i>Chaney</i>), <i>Romero v. Superior Court</i> (2001) 89 Cal.App.4th 1068 (<i>Romero</i>), <i>Margaret W., supra</i>, 139 Cal.App.4th 141, and <i>J.L., supra</i>, 177 Cal.App.4th 388, because those cases "involved criminal conduct by family members or guests that occurred in homes, and there was no evidence to indicate criminal conduct by these individuals was in any way foreseeable," while <i>Youth Soccer</i> "involved criminal conduct by a member of an organization that provided activities exclusively for children." (<i>Youth Soccer, supra</i>, 8 Cal.App.5th at p. 1135.) <i>Youth Soccer</i> further distinguished its circumstances from the circumstances presented in the foregoing cases: "More importantly, here, defendants were aware that sexual predators were drawn to their organization in order to exploit children and that there had been prior incidents of sexual abuse of children in their programs." (<i>Ibid.</i>) This court finds
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		<i>Chaney, Romero, Margaret W., and J.L.</i> to be more analogous to the circumstances of this case involving a foster home, than the circumstances involving youth sports at issue in the <i>Youth Soccer</i> case. Moreover, <i>Doe v. Los Angeles County Department of Children & Family Services</i> (2019) 37 Cal.App.5th 675, makes clear actual knowledge is the appropriate standard in the foster home context. (<i>Id.</i> at pp. 682-683.) Here, Plaintiff asserts Defendants were first made aware of allegations of sexual abuse by Plaintiff's foster parent in 1971, when Plaintiff's foster brother, R.S., told his social worker (who was different than Plaintiff's social worker), "I feel really weird taking a shower with dad" and "it was yucky." (Response to Separate Statement, Fact Nos. 10, 22, 23, 27.) The ruling in the related case of <i>R.S. v. OCSSA, et. al.</i>, Orange County Superior Court 30-2021-01183062, however, noted that statement alone was not sufficient to create or establish actual knowledge that would make the harm foreseeable. The court takes judicial notice of its April 11, 2023 Minute Order granting summary judgment in the related <i>R.S.</i> matter. Plaintiff also asserts he "repeatedly reported" to his social work "Bad people are hurting me." (Response to Separate Statement, Fact Nos. 10, 22, 23, 27.) Plaintiff relies on his deposition, in which he was questioned about his Interrogatory response. Plaintiff was asked "Did you say anything else other than "Bad people are hurting me?" to which Plaintiff answered "I'm going to pretty much stick with those words. When I first told her, I was young." (Plaintiff's Deposition 121:22-25.) Finally, Plaintiff asserts his social worker was aware of his bedwetting, and that it is a common issue in children who have experienced sexual trauma, citing to the deposition of his social worker. (See Response to Separate Statement, Fact No. 14.) The deposition of Plaintiff's social worker indicates she was aware of the bedwetting, and it is "a pretty common issue for children who've experience trauma." (Deposition at 39: 20-25.) Further, Plaintiff's social worker testified she did not "consider it as a red flag based on the whole context of" Plaintiff's history. (Deposition at 43: 8-10.)
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